



UNITED STATES MARINE CORPS
MARINE CORPS LOGISTICS
COMMAND CONTRACTS
DEPARTMENT
814 RADFORD BOULEVARD
ALBANY, GEORGIA 31704-0301

J&A Number: 15060.1
Code: M67004

JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION

The purpose of this J&A amendment is to increase the total dollar value of the J&A from [REDACTED] to [REDACTED] to support a modification for additional repairs and parts for Ground/Air Task Oriented Radar and Amphibious Combat Vehicle National Stock Numbers. This J&A amendment replaces the original J&A, number 150600, in its entirety.

1. Contracting Activity

Marine Corps Logistic Command (MARCORLOGCOM) (M67004).

2. Description of the Action Being Approved

This is a brand name justification for Original Equipment Manufacturer (OEM) services and supplies to be provided in support of the Logistics Integrated Support Program under contract M67004-21-D-0002 with contractor Vertex Aerospace, LLC. (V2X), 555 Industrial Dr S., Madison, Mississippi 39110.

This justification pertains only to those portions of the contract for which Original Equipment Manufacturer (OEM) services or supplies are required.

3. Description of Supplies/Services

MARCORLOGCOM requires OEM service representatives to perform repairs, overhauls, and remanufacture and provide replacement parts for NSNs listed in paragraph 5. The estimated dollar value of the supplies and services covered by this justification is [REDACTED], increased from [REDACTED] approved at time of original contract award.

This increase is resulting from the addition of over 200 OEM NSNs during Fiscal Year 24 in support of the Ground/Air Task Oriented Radar (G/ATOR) and Amphibious Combat Vehicle that were not included at time of original contract award. SECREP support was able to continue under the contract as the Government had not exceeded the original J&A ceiling of [REDACTED]. To ensure continued enterprise support, this J&A amendment is required to increase the ceiling limit as detailed in the tables below.

The period of performance covered under this J&A is 1 June 2021 through 31 May 2026, with the possibility of a 6-month option under FAR 52.217-8, which would extend the period of performance to 30 November 2026.

All supplies and services will be funded with Operations and Maintenance, Marine Corps (O&M, MC), and Navy Working Capital Funds (NWCF). Table one below shows the approved estimated

dollar value at time of contract award. Table two illustrates the increased estimated dollar value amounts.

Table one	FY21	FY22	FY23	FY24	FY25	FY26	Total

Table two	FY21	FY22	FY23	FY24	FY25	FY26	Total

4. Statutory Authority Permitting Other Than Full and Open Competition

10 U.S.C. 3204(a)(1), Only one responsible source and no other supplies or services will satisfy agency requirements.

5. Rationale Justifying Use of Cited Statutory Authority

For all NSNs included in the chart below, the individual OEM is the only vendor with all the materials, proprietary drawings, and tools to repair, remanufacture, or overhaul the specific NSN. The OEM does not supply other vendors with the proprietary materials and information required to repair the item and therefore repair, remanufacture, or overhaul must be done only through the OEM as the Government does not own the data rights proprietary to the OEM.

Table three illustrates the amended OEM vendors and NSNs covered under this J&A.

Table three

OEM/Manufacturer	NSN
Aimpoint, Inc - (CAGE 3J629)	
	1230016745202
Astronics Test Systems (CAGE OW200)	
	4920015679426
	6110015678975
ATSI (CAGE KC088)	
	5895991614403
	6130994904703
	6130999613484
	6140999579171
COMROD (CAGE 6LM77)	
	6120016849376
COMTECH Corp (CAGE 31196)	
	5895015683027

Creating Tech. Solutions (CAGE 60177)	
	5895015876582
Data Device Corp (CAGE 19645)	
	6110017144771
Detectchem Inc (CAGE 4KC19)	
	6665017069129
DTECH Labs Inc. (CAGE 1WU62)	
	5895016461726
East Coast Datacom (CAGE 1NW18)	
	5895017148743
FEI Zyfer (CAGE 32964)	
	5825017087891
Foster Miller (CAGE 30233)	
	6760016206660
GATR Technologies (CAGE 3XWN1)	
	5895016922973
	5895016927092
	5985016922591
	5985016922810
	5985016922936
	5985016922940
	5985016927175
	6120016923024
	6130016923039
	5895016467704
	5895016471399
	5985016467702
	5985016468861
	5985016473750
	5895016959804
	7010016954505
	5985016472803
	5895016959805
	5895017143720
	5895017143898
	5895017143982
	5985017112307
	5985017128694
	5985017133992
	5985017137649
	5985017143167
	5985017143403

	6130017151665
	5895017090583
	5985017082938
General Dynamics (CAGE 1GD22)	
	5996015640958
General Micro Systems (CAGE 0A8J6)	
	7025016777745
GETAC Inc (CAGE 00PP6)	
	7010017087695
	7010017142967
Harris NY (CAGE 7QAK7)	
	3010016229604
	3010016740020
Harris RF Div (CAGE 14304)	
	5820015050814
	5820015549530
	5820015596055
	5820015596068
	5820015709746
	5820015852735
	5820016143307
	5998015596074
	5998016004568
	5999015013231
	5999016004718
	5820015789775
Herrick Technologies Lab Inc (CAGE 78VC0)	
	5820016752846
Keysight Technologies (CAGE 7ZXR5)	
	5895015649929
KIDDEAD (CAGE 05BU0)	
	4820015426891
KOLLSMAN (CAGE 89944)	
	6650016499529
L-3 Technologies Inc. (CAGE 82151)	
	5985016505894
L3 GCS Division (CAGE 1UB81)	
	5895016226419
Letterkenny Army Depot (CAGE 0NDM7)	
	1440014583366
Leonardo Inc. (CAGE K0668)	
	5821992798718

Logicube Inc, CAGE 1Q1Q9	
	7025016743007
MILDEF Inc - (CAGE 7NK16)	
	7010017142753
MILPOWER Source Inc (CAGE 5YWX2)	
	6120017145213
ORBIT INTL (CAGE 11263)	
	5840015527034
Pacific Star Communications Inc (CAGE 1RZG3)	
	5895017078372
	5975016637524
	5975016637525
	5975016637526
	5975016888400
	5975016888414
	7025016637523
	7025016646887
	7025016646888
	7025016993973
	7025016994770
	7025017086526
	7025017086903
	7035017086594
	5895016994368
	5895016214028
	5895016214029
Raytheon/McKinney Co. (CAGE 96214)	
	5860015740721
Raytheon Co. (CAGE 49956)	
	5998014398394
	5998014401318
	5998015340495
	5998015340891
	5998015342256
	7035015888175
	6130014401304
Raytheon Co. (CAGE 96214)	
	1430016469243
	5865016469244
SCI Technology (CAGE 2J622)	
	5895016977482
SericoTechnologies (CAGE 53UB2)	

	1375016722186
Spectro Scientific inc. (CAGE 1BL81)	
	6635016962489
	6635016962490
	6635016962495
	6635016975588
	6635017034939
	6640017011092
Sunhillo Corp - (CAGE 1KTP6)	
	5895017141928
	5895017144763
TACTICAL ELECTRONICS (CAGE 1QCD0)	
	5836016786199
	5836016786200
	6650016785520
	7025016785910
Thales (CAGE 23386)	
	5860015740605
	5820014870976
Trimble Inc. (CAGE 3MJN0)	
	6675016618830
Ultra Electronics/Technologies TCS Inc. (CAGE L1084)	
	5895017003779
	5995016998093
	5895017084654
	5820017003763
VAIVI Solutions Inc (CAGE 51190)	
	5820016210049
	6130016205397
	6130016205710
	5998016581742
	5820016208740
VIASALA Inc. (CAGE 63653)	
	6660223092925
	6660015640919
Vidisco (CAGE 8BGQ9)	
	6635310180224

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable

For the original contract award, the Government posted a synopsis and a Request for Proposal (RFP) at the Government Point of Entry, Beta.SAM website, with the intent of awarding an

Indefinite Delivery, Indefinite Quantity (IDIQ) contract to the best value offeror. Any prospective contractor was required to use the OEM vendor as a subcontractor to perform the work in the related Performance Work Statement (PWS). No additional market research was conducted because it is not practicable, for the reasons discussed in paragraph 5, for any company other than the OEM vendor to perform the work in the related PWS.

For the scope added via the J&A amendment, the Government conducted market research by reviewing FEDLOG, which provides essential information about items within the federal supply system, to include interchangeable and substitutable data & physical and performance characteristic, to understand if any OEM NSN could be substituted by a similar competitive NSN. The review resulted in the determination that no like or similar NSN parts can satisfy this requirement. Thus, the Contracting Officer has determined that the only sources that can meet this requirement are the NSNs controlled by the OEMs.

7. Determination of Fair and Reasonable Costs

The Contracting Officer has determined that the anticipated cost to the Government of the supplies/services covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Competition

For reasons set forth in Paragraph 5, MARCORLOGCOM has no plans at this time to allow the prime contractor to solicit these requirements competitively. If another potential source emerges, MARCORLOGCOM will assess whether competition for future requirements is feasible. Additionally, MARCORLOGCOM assessed the interest of the OEMs to sell their data rights to the Government.

On 13 April 2021, MARCORLOGCOM contacted the top three OEM vendors, in terms of annual cost of repair, overhaul, and remanufacture, to ask whether they would be willing to sell the technical data for their respective NSNs (listed in paragraph 6) to the Government; Harris RF DIV (CAGE 14304), General Dynamics (Communications & Power Industries LLC.) (CAGE 1GD22), and Thales (CAGE 23386). At time of original contract award, these top three OEM vendors were estimated to represent 58% of the original J&A value.

Harris and Thales stated that it is not willing to sell the technical data for its respective NSNs. The Government asked General Dynamics, now Communications & Power Industries LLC., multiple times if it was interested in selling its technical data to the Government. Communications & Power Industries LLC. did not answer the Government's inquiries. Based on the negative response from Harris and Thales, and the lack of firm response from Communications & Power Industries LLC., the three OEMs that make up the preponderance of the estimated cost under this J&A, the Contracting Officer determined at the time that it was unlikely that the other OEMs would sell their data rights for their respective NSNs covered under this J&A. As these manufacturers are not willing, or were not expected to be willing, to sell their technical data to the Government and no other sources of repair, overhaul, or manufacture exist for the NSN items listed in this J&A, it was determined most beneficial to the Government to use these Brand Name manufacturers to provide replacement parts for and repair, remanufacture, and overhaul the NSN items listed in this J&A.

On 13 February 2025, MARCORLOGCOM contacted 45 OEMs to determine whether they would be willing to sell the technical data for each of their respective NSNs. Six of the 45 responded saying they would be willing to negotiate the purchase of their respective technical data packages (totaling 41 NSNs). Throughout the continued execution of the contract, MARCORLOGCOM will work with

the respective OEM Contractors and Marine Corps System Command to determine the Government's interest in purchasing the respective technical data packages.

CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION (FAR 6.303-20)

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief.

COMBINED TECHNICAL AND REQUIREMENTS COGNIZANCE:

Digitally signed by SIBLEY.VINCENT.BERNARD.1065726463 Date: 2025.03.27 12:37:11 -04'00'	Vincent Sibley, Commercial Repair Section Supervisor (229) 639-6546	3/27/25
Signature	Name and Title	Phone No. Date

LEGAL SUFFICIENCY REVIEW

I have determined this justification is legally sufficient.

Digitally signed by NETA.WALTER.NYLE.109905901 Date: 2025.03.27 13:53:26 -04'00'	Walter Neta, Associate Counsel	(229) 639-7368	3/27/27
Signature	Name and Title	Phone No.	Date

CONTRACTING OFFICER CERTIFICATION

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Digitally signed by CARLSON.CHRISTOPHER.C.1080038638 Date: 2025.03.27 13:14:35 -04'00'	Christopher Carlson, Contracting Officer	(229) 639-6573	3/27/25
Signature	Name and Title	Phone No.	Date

APPROVAL BLOCK

Upon the basis of the above justification, I hereby approve, as Assistant Deputy Commandant, Installation & Logistics (Contracts), the solicitation of the proposed procurement described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 2304(c)(1).

Digitally signed by DEAL.JOHANY.M.1277043412 Date: 2025.04.01 13:06:47 -04'00'	4/1/25
Signature	Date